Acknowledgment of Risks

PIRELLI WAIVER AND RELEASE AGREEMENT

TEAMS (Team Principal) AND DRIVERS MUST COMPLETE AND SIGN THIS RELEASE, WAIVER OF LIABILITY, ASSUMPTION OF RISK, AND INDEMNITY AGREEMENT ("AGREEMENT").

I_____, in consideration of being permitted to participate, attend, volunteer, sponsor, enjoy or work (hereinafter "Participant") at WC Vision, LLC (hereinafter "Promoter") activities, including without limitation racing events and series, at any times during the period from January 1, 2026 to December 31, 2026 (hereinafter referred to as "Activity"), I, my personal representatives, assigned heirs and next of kin hereby agree as follows:

QUALIFIED PERSON

1. I ACKNOWLEDGE, agree, and represent that either on behalf of myself, or as guardian for the minor Participant:
   a. I understand the nature of the Activity and that I am over 18 years of age, qualified, in good health and in proper physical condition to participate in or observe such Activity.
   b. I affirm that I have no pre-existing medical or physical condition incompatible with my participation.
   c. I further agree and warrant that if at any time I believe conditions to be unsafe for myself, I will immediately discontinue further participation in the Activity.
   d. I understand that motor sports, including the use of high performance road vehicles on a race track is an inherently dangerous activity, and accept any and all injuries I may sustain as I participate, attend, volunteer, sponsor, enjoy or work at this Activity.
   e. I am a professional driver, hold a valid operator's license; and am associated with _____ team. I will not participate in any Activity while under the influence of any alcohol, drug or medication which may impair my ability to respond and react to conditions at the Activity or instructions provided; I will utilize all required safety devices and equipment and I will comply with all instructions and guidelines provided including those related to COVID-19.

I understand that, as a participant I may have access to drive a high performance street car and/or race car. As such, I undertake upon myself to fully indemnify WCV Promoter and Pirelli Tire LLC (together with its affiliates, successors, licensees and assigns, "PIRELLI") to the greatest extent allowed by law for any and all damages, regardless of nature and/or cause, that I may willfully or recklessly contribute to. ASSUMPTION OF RISK

2. **I FULLY UNDERSTAND that:**
   a. ATHLETIC ACTIVITIES, INCLUDING CAR RACING AND HIGH PERFORMANCE DRIVING, INVOLVE RISKS AND DANGERS OF SERIOUS BODILY INJURY, INCLUDING, BUT NOT LIMITED TO, PERMANENT DISABILITY, PARALYSIS, AND DEATH (hereinafter referred to collectively as "Risks")
   b. My participation in the Activity is inherently dangerous and the Risks and dangers may be caused by many factors, including, but not limited to:
      i. My own actions or inactions; and/or
      ii. The actions or inaction of other Participants or otherwise attending the Activity; and/or
      iii. Exposure to COVID-19 or other diseases;
      iv. The condition in which the Activity takes place; and/or
      v. Tires used on the vehicle. **I AM AWARE THAT PIRELLI MAY BE THE TIRE PROVIDER, AND IF SO, I KNOW AND AFFIRM THAT PIRELLI MAKES NO WARRANTY, EXPRESS OR IMPLIED, AS TO THE QUALITY OF WORKMANSHIP, MATERIALS OR DESIGN OF ITS TIRES FOR RACING AND TESTING PURPOSES, AND THAT PIRELLI EXPRESSLY DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, AS TO MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.** Tires provided may be used on vehicles at Promoter's events, facility, and/or Promoter's cars which cars may be used for racing and testing purposes and for use at the speeds at which the cars will be driven and for other maneuvers which will be necessary when driving the cars in events and during testing; and/or
      vi. THE NEGLIGENCE OF PIRELLI and/or Promoter, and all related, affiliated and subsidiary companies of the same, as well as the officers, directors, agents, employees and assigns of each, coaches, officials, administrators, members, volunteers, participants, sponsors, advertisers, and the owners and lessors of premises on which the Activity takes place, and any other party indemnified and held harmless by Promoter pursuant to a third-party agreement (hereinafter collectively referred to as "RELEASEES").
      vii. THE NEGLIGENCE of the car manufacturer, tire manufacturer, tire supplier, and track owner(s).
   c. <u>There may be OTHER RISKS AND SOCIAL AND ECONOMIC LOSSES either not known to me or not readily foreseeable at this time.</u>
   d. Of free will I FULLY ACCEPT AND ASSUME ALL THE <u>RISKS</u> from participating in or observing the Activity.

RELEASE OF LIABILITY

3. I COVENANT TO NOT SUE, AND I RELEASE AND DISCHARGE THE RELEASEES FROM ANY AND ALL LIABILITY, CLAIMS, DEMANDS, LOSSES, OR DAMAGES ON MY ACCOUNT CAUSED OR ALLEGED TO BE CAUSED IN WHOLE OR IN PART BY THE NEGLIGENCE OF THE RELEASEES OR OTHERWISE, INCLUDING NEGLIGENT RESCUE OPERATIONS, NEGLIGENT SECURITY, TRAVEL, AND RECREATIONAL OPERATIONS AND ACTIVITIES.

INDEMNIFICATION AGREEMENT

4. I AGREE that if, despite this AGREEMENT, I, or anyone on my behalf or on behalf of my estate, makes a claim against any of the RELEASEES, I or my estate SHALL INDEMNIFY, SAVE, ANTICIPATE ALL LITIGATION COSTS FOR AND HOLD HARMLESS EACH OF THE RELEASEES from any litigation expense, attorney fees, loss, liability, damage, or cost which any may incur as the result of such claim.

DRUG AND ALCOHOL TESTING

5. I understand that in consideration of the acceptance of this entry, I agree to any test method deemed necessary by Promoter for the detection of drugs and alcohol, and that the results of said testing method which Promoter or its sponsors use to detect the presence of alcohol and/or drugs may be released to any third party(ies) and I generally and specifically waive any right to privacy if any, related thereto.
   a. Specifically, I hereby waive and release, intending to be legally bound for myself, my estate, my executors, administrators, and heirs, all rights and claims for damages I may have against RELEASEES as a result of testing positive for the utilization of alcohol and/or drugs prior to participating in the Activity.
   b. Moreover, by participating in the Activity, I give my consent to undergo the testing procedures and, if any such results test positive, I understand that I shall be disqualified from the pertinent Activity.
   c. I understand that the fact that I am not tested does not imply consent has been given to drive under the influence of alcohol, drugs or any other mind-altering or physical impeding substance.

CHOICE OF LAW AND CHOICE OF FORUM

6. I AGREE THAT this AGREEMENT shall be governed by and construed in accordance with Georgia law, and any and all actions shall be brought in the State and Federal Courts in Atlanta, Georgia.

ARBITRATION CLAUSE

7. I AGREE THAT: Any dispute or difference of any kind whatsoever arising out of, relating to or in connection with this AGREEMENT, whether in contract, tort, statutory, or entirety or part, shall be finally settled by binding arbitration, conducted pursuant to the American Arbitration Association (AAA) rules by a single person panel.otherwise, including any questions as to the existence, scope, validity, breach or termination of this AGREEMENT in its
   a. Arbitration shall be held in Atlanta, Georgia;
   b. Arbitrators shall apply law indicated in the "Choice of Law" provision of the present AGREEMENT.
   c. Costs of arbitration shall be equally divided among the parties.
   d. This provision shall be binding upon the signing party as well as their executors, estate, and next of kin.
   e. ARBITRATION INVOLVES THE WAIVER OF THE RIGHT TO A JURY TRIAL. BY EXECUTING THE PRESENT AGREEMENT ALL PARTIES AGREE TO BE BOUND BY THE PROVISIONS OF THE PRESENT SECTION, AND AGREE TO WAIVE THEIR RIGHT TO A TRIAL IN A COURT OF LAW.

NO WAIVER OF TERMS

8. I AGREE THAT any party's waiver of any breach or failure to enforce any of the terms and conditions of this AGREEMENT at any time shall not in any way affect, limit or waive such party's right thereafter to enforce and compel strict compliance with every term and condition hereof.

NO ORAL MODIFICATION

9. I AGREE THAT this AGREEMENT constitutes the complete, final and exclusive agreement among the parties hereto and supersedes and cancels any and all prior communications and agreements between the parties with respect to the subject matter hereof.
10. I FURTHER AGREE THAT the present AGREEMENT excludes future modification except by signed writing, and that this AGREEMENT may not otherwise be modified.

SEVERABILITY, INDEPENDENCE AND INTERPRETATION

11. I AGREE AND UNDERSTAND THAT:
   a. The provisions and terms of the present AGREEMENT shall be deemed independent and severable, and that a determination of invalidity or partial invalidity or unenforceability of any one provision or portion hereof by a court or arbitration tribunal of competent jurisdiction shall not affect the validity or enforceability of any other provision herein.
   b. The provisions of this AGREEMENT shall be liberally construed to effectuate its purpose of releasing from liability, indemnifying and protecting the RELEASEES.
   c. The Article headings, titles and captions have been inserted for convenience only, and shall not be considered or referred to in resolving questions of interpretation or construction.
   d. That, as used in this AGREEMENT, the term "including" shall be construed and understood, unless otherwise indicated, to mean "including, without limitation" or "including, not limited to."

USE OF LIKENESS

12. By signing here below I hereby grant Promoter, PIRELLI and the holder of the Activity permission to obtain and/or film, tape or otherwise photograph, record, reproduce and/or simulate my picture, silhouette, voice, words and any other reproductions of my physical likeness or recordings of my voice and all testimonials, quotes, or other statements provided by me or taken (hereinafter "Materials"), whether developed by Pirelli or obtained by Pirelli from a third party, for use in motion picture or digital film, video, still photography, audio recordings, websites, social media and/or any other medium

or media in connection with Pirelli's advertising, promotion, trade, training or any other lawful purpose (hereinafter, the "Product"). I further grant all right, title and interest in and to the resulting Product, including, without limitation, the right to utilize the Materials in whole or in part and to exhibit, broadcast, display, advertise, publicize, promote and exploit the Materials and the Product worldwide, in any and all media in perpetuity, without compensation, and waive and release Pirelli and its representatives from any and all causes of action, including, without limitation, right of publicity, invasion of privacy and copyright, in connection with such uses of the Materials.

DATA COLLECTION

13 I AGREE AND UNDERSTAND that my personal data and identifying information may be collected by Promoter and may be shared with third parties for marketing, analytics and/or to provide additional offers or information that Promoter, its affiliates or its partners, including PIRELLI, believe may be of interest to me. PIRELLI shall handle any data provided to it in accordance with its Privacy Policy, accessible at https://www.pirelli.com/tires/en-us/learn/privacy-policy and in accordance with any applicable laws and regulations concerning the protection of personal data, including but not limited to the General Data Protection Regulation (GDPR).

NON DISPARAGEMENT AND NO HARMFUL ACTS.

14 To the fullest extent permitted by law, I agree that directly or through my representatives have not made, and shall not make, any disparaging or critical comments regarding Pirelli, including its business, products, services, shareholders,directors, officers, employees, representatives and agents, affiliates and other sponsored businesses, events and activities and shall not at any time commit any act or do anything that (a) is or shall be an offense involving moral turpitude under federal, state, local or foreign laws (including being convicted of, pleading guilty to, or entering a plea of no contest or nolo contendre to any such act), (b) brings Pirelli into public disrepute, contempt, scandal or ridicule, (c) insults or offends the community or any substantial organized group thereof, or (d) might tend to injure the success or reputation of Pirelli.

BY SIGNING HERE BELOW I INDICATE THE FOLLOWING: (i) THAT I HAVE READ THIS AGREEMENT IN ITS ENTIRETY AND FULLY UNDERSTAND ALL OF ITS TERMS; (ii) I UNDERSTAND THAT I HAVE GIVEN UP SUBSTANTIAL RIGHTS BY SIGNING THIS AGREEMENT; (iii) THAT I HAVE SIGNED THIS AGREEMENT FREELY AND WITHOUT ANY INDUCEMENT OR ASSURANCE OF ANY NATURE BY ANYONE; (iv) THAT I AM OF CLEAR AND SOUND MIND, AND NOT UNDER THE EFFECT OF ANY MIND-ALTERING DRUG OR SUBSTANCE; (v) THAT I HAVE NO PHYSICAL IMPEDIMENT TO PARTICIPATING; (vi) THAT I HAVE NO PREEXISTING CONDITION THAT DRAWS INTO QUESTION MY ABILITY TO BE A PARTICIPANT, (vii) THAT I INTEND THIS AGREEMENT TO BE, AS TOWARDS THE RELEASEES, A COMPLETE AND UNCONDITIONAL RELEASE OF ANY AND ALL LIABILITY TO THE GREATEST EXTENT ALLOWED BY LAW; AND (viii) I AGREE THAT IF ANY PORTION OF THIS AGREEMENT IS HELD TO BE INVALID, THE BALANCE, NOT WITHSTANDING, SHALL CONTINUE IN FULL FORCE AND EFFECT.

It is understood, agreed and acknowledged that a facsimile, PDF or electronic signature will be as binding as an original signature for purposes of enforcing this AGREEMENT and may be admitted as an original in any legal proceeding.

DO NOT SIGN UNLESS YOU HAVE READ, UNDERSTOOD AND AGREED TO ALL THE CONDITIONS ABOVE.

BY: _____

DATE: _____

PRINT NAME: _____

ADDRESS: _____

TEAM: _____